

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1370

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO ABORTION TRAFFICKING; AMENDING SECTION 18-623, IDAHO CODE, TO
REVISE A PROVISION REGARDING ABORTION TRAFFICKING; AND DECLARING AN
EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-623, Idaho Code, be, and the same is hereby
amended to read as follows:

18-623. ABORTION TRAFFICKING. (1) An adult who, with the intent to
conceal an abortion from the parents or guardian of a pregnant, unemanci-
pated minor, either procures an abortion, as described in section 18-604,
Idaho Code, or obtains an abortion-inducing drug for the pregnant minor to
use for an abortion by ~~recruiting~~, harboring, or transporting the pregnant
minor within this state commits the crime of abortion trafficking. As used
in this subsection, the terms "procure" and "obtain" shall not include the
providing of information regarding a health benefit plan.

(2) It shall be an affirmative defense to a prosecution under subsec-
tion (1) of this section that a parent or guardian of the pregnant minor con-
sented to trafficking of the minor.

(3) It shall not be an affirmative defense to a prosecution under sub-
section (1) of this section that the abortion provider or the abortion-in-
ducing drug provider is located in another state.

(4) The Idaho attorney general has the authority, at the attorney gen-
eral's sole discretion, to prosecute a person for a criminal violation of
this section if the prosecuting attorney authorized to prosecute criminal
violations of this section refuses to prosecute violations of any of the pro-
visions of this section by any person without regard to the facts or circum-
stances.

(5) Any person who commits the crime of abortion trafficking, as pro-
vided in subsection (1) of this section, shall be punished by imprisonment
in the state prison for no less than two (2) years and no more than five (5)
years.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.